

FROM THE EDITORS Welcome to the April 2024 edition of Voice Express. Our correspondents bring you the stories that matter — from frontlines of policy to quiet revolutions in culture and science.

POLITICS

The Legal Crusader: Unveiling the PIL Journey of Surjit Singh Yadav

A profile of Surjit Singh Yadav — president of Hindu Sena and the petitioner behind the PIL seeking Arvind Kejriwal's removal as Delhi CM — whose long and eclectic history of Public Interest Litigations reveals a consistent pattern of weaponising the courts for politically motivated ends.

BY MOULI SHARMA

The petitioner behind the PIL to remove Arvind Kejriwal from the post of Delhi CM makes a unique hobby out of Public Interest Litigations, and his legal portfolio paints quite the picture.

Surjit Singh Yadav's organisation, the Hindu Sena, also has a long-standing history of run-ins with the law, of both violating and utilising it (see: Hindu Sena says it vandalised signboard outside US embassy, 1 arrested | Delhi News - The Indian Express and Hindu Sena moves SC seeking action for hate speeches against Sanatan Dharma). A pseudo-terrorist fringe group, it frequently invails the law and moves court to protect the sanctity of the Hindu religion. Much of Yadav's petitionary concern mirrors this, illustrating his trivialisation of the judicial system as well as his recurring demands of it to advance his own personal political agendas.

Yadav's recent PIL sought to restrain Chief Minister Arvind Kejriwal from issuing orders while in police custody of the Directorate of Enforcement (ED) and also requested not to provide typist or computer facilities to Kejriwal during this time. Through Advocates Shashi Ranjan Kumar Singh and Mahesh Kumar, the petitioner further stated that Arvind Kejriwal, while issuing directions and orders in custody, is breaching his oath of secrecy administered to him under the Third Schedule of the Constitution of India. The PIL appears to address concerns regarding governance and accountability in Delhi's administration.

A division bench of Acting Chief Justice Manmohan and Justice Manmeet Pritam Singh Arora said:

“Having heard the counsel for the petitioner and having perused the paper-book, this court is of the view that there is no scope for judicial interference in the present matter. This court in writ jurisdiction cannot remove or dismiss Respondent No. 4 (Kejriwal) from the post of Chief Minister of the Government of NCT of Delhi or declare breakdown of constitutional machinery in the state. It is for the other organs of the state to examine the said aspect in accordance with law.”

Though the petition led to little consequence other than bringing Yadav's name back to media attention, it is noteworthy that this is not the first PIL he has filed, or second, (or third).

As per judicial records between 2022 and 2024, Yadav has filed at least six (Update, 1st April 2024: now seven) PILs in two years, and three in the past two weeks alone, on March 20th, 28th, and the 1st of April. All three of these petitions, filed after the enforcement of the code of conduct , have raised allegations against political parties; notably opposition parties to the current BJP-led government.

It is important to note here that filing a PIL is not quite the same as filing any other ordinary lawsuit. As the Delhi High Court reminded Yadav's counsel during the hearing of his first PIL hearing this year -

“The courts exercising their power of judicial review found to their dismay that the poorest of the poor, the depraved (sic), the illiterate, the urban and rural unorganized labour sector, women, children, those handicapped by "ignorance, indigence and illiteracy and other downtrodden persons have either no access to justice or had been denied justice. A new branch of proceedings known as "social action litigation" or "public interest litigation" was evolved with a view to render complete justice to the aforementioned classes of persons. It expanded its wings in course of time. The courts in pro bono publico granted relief to inmates of prisons, provided legal aid, directed speedy trials, maintenance of human dignity and covered several other areas.” (Supreme Court in Guruvayoor Devaswom Managing Committee and Anr. vs. C.K. Rajan and Ors. , (2003) 7 SCC 546)

Courts not only bear the cost of PIL's but fast track them, prioritising them over other cases clogging India's judicial system, relaxing legal restrictions, & hearing them directly in High Courts & the Supreme Court, because this is the only way that the downtrodden in our society can receive justice.

Among the many matters that Surjit Singh Yadav has been habitually making use of this tool of social justice for, have been cases defending corporations & industrialists alleged to have received loan waivers from the central government, questioning whether the Taj Mahal was really built by the Mughals, & trying to prevent an arrested politician from accessing stationary.

The following sections expand on each of these cases in further detail.

In November 2023, a plea put forth by Surjit Singh Yadav asserted that the 17th-century monument, Taj Mahal, was originally the residence of Raja Man Singh, later refurbished by the Mughal Emperor Shah Jahan. The court observed that Mr. Yadav had previously submitted a similar plea to the Supreme Court, which was withdrawn after he suggested providing a representation to the ASI back in December 2022.

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In his plea, first called to hearing in the Supreme Court in November 2022, Yadav had claimed that as per his research, a mansion already existed at the site where the Taj Mahal is built. And argued that the apparent absence of a named architect for the mausoleum in historic documents ‘quite clearly indicates that the mansion of Raja Man Singh was not demolished but only modified and renovated to create the current look of the Taj Mahal.’

"He has certainly brought out many historical facts that are very interesting." Additional Solicitor General (ASG) Chetan Sharma stated, appearing for the Center.

The apex court declined to consider the plea, emphasising that PILs should not be used for speculative inquiries and that courts are not in place to revisit historical matters, & clearly concluded the matter with, “No further adjournment shall be granted on any ground.” Yadav then sought permission to withdraw his plea and make a representation before the Archaeological Survey of India, which was granted in December. (Case Title: Surjt Singh Yadav v. UOI and Ors.)

Yadav looked for explicit mandates from the Archeological Survey of India (ASI), the Focal government, the Public Files of India, and the Uttar Pradesh government. In his request, Yadav claimed that he has led broad exploration of the Taj Mahal and demanded the expulsion of ‘verifiable errors’ concerning the development of the Taj Mahal from reading material and asked the ASI to lead an examination concerning the age of the construction and the presence of Raja Man Singh's royal residence. He also contended that different books about the Taj Mahal contain clashing data, for example, one book recommending that Shah Jahan's better half was Aliya Begum without any notice of Mumtaz Mahal.

But it didn’t end there. Yadav filed another petition next year in November 2023, after making this representation to ASI, this time in the Delhi High Court, despite having received no validating response from the research organisation, & receiving clear instruction from the Supreme Court regarding the scope of judicial interference (or lack thereof). The petition was dismissed immediately.

“4. Learned ASG has fairly stated before this Court once a representation is preferred, the Archaeological Survey of India will look into it.

5. In the light of aforesaid, no further orders are required to be passed in the present PIL as the petitioner has already submitted a representation in

On 20th March 2024, another recent PIL filed by Surjit Singh Yadav aimed to initiate an investigation and legal action against Congress leader Rahul Gandhi, Delhi Chief Minister Arvind Kejriwal and President of Samajwadi Party, Akhilesh Yadav. The crux of the allegation is that the individuals have purportedly made misleading or false statements regarding the waiver of loans for industrialists, thus tarnishing the reputation of the central government as well as the nation. The High Court, however, stated that the industrialists and the individuals who are alleged to have been defamed had the means and resources to approach the court and file appropriate proceedings, by themselves.

During the hearing, Acting Chief Justice Manmohan told Yadav's counsel: “If people or industrialists are aggrieved, they will take action. How can we interfere in this? Don't underestimate the wisdom of voters. Don't speak their mind, please. Don't involve us in this....”

“Someone misleads, someone leads. Let the people take the call. Don't get us involved in this. If people are aggrieved, they will take action. Why should we relax the principle of locus standi to entertain the PIL?”

Furthermore, the PIL sought directives concerning political parties such as the Indian National Congress, Aam Aadmi Party, and Samajwadi Party, as well as media outlets News 24, X (formerly Twitter), and YouTube, to remove the purportedly false and misleading statements from their respective platforms.

Yadav argued that the statements were disseminated with the intention to create confusion among readers or viewers, thereby aiming to undermine the image of the Central Government.

In March 2022, Gupta, filed a PIL highlighting concerns regarding the offers and promises - now colloquially referred to as ‘freebies’ - made by political parties in the ongoing assembly elections, which the court rejected due to targeting specific political parties instead of having genuine reform suggestions. “You have a hidden agenda. Who are you?” asked the court. “I am a Devotee.” Replied his counsel.

So it goes. It seems, that beyond physical violence, organisations like the Hindu Sena & the individuals that make them have turned the PIL into a weapon, corrupting a tool of social justice into one that wastes resources & time, distracts the Nation from pre-existing problems by creating new ones that didn’t need solving, & in this sense inflicts far greater damage to India’s democracy than any physical

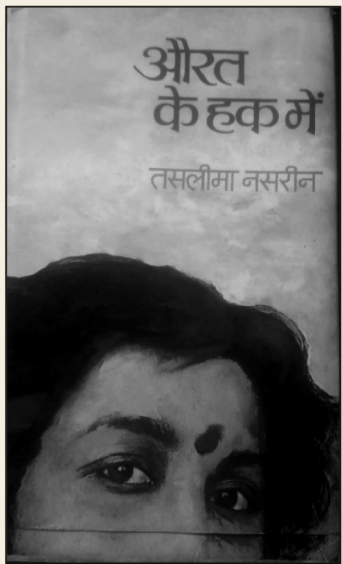
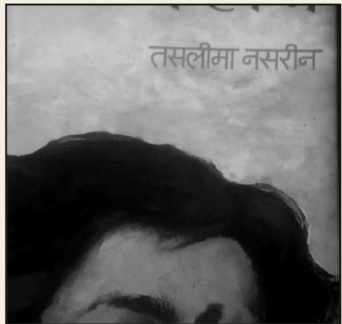
Evidently not. Perhaps it never was.

1. 2nd March 2022: Diary 6179/2022
2. 3rd March 2022: Diary 6179/2022
3. 28th November 2022: Diary 28636/2022
4. 5th December 2022: Diary 28636/2022
5. 10th May 2023: Diary 6090/2023
6. 6th September 2023: Diary 6090/2023
7. 3rd November 2023: Diary 14336/2023
8. 20th March 2024: Diary 4218/2024
9. 28th March 2024: Diary 4578/2024
10. 1st April 2024: Diary 4642/2024

GENDER औरत के हक में

तसलीमा नसरीन की 'औरत के हक में' की हिंदी समीक्षा — एक ऐसी किताब जो पितृसत्ता, धार्मिक कट्टरवाद और स्त्री-स्वतंत्रता के सवाल को बेबाकी से उठाती है। विज्ञान की तार्किकता पर खड़े तसलीमा के सवाल हर उस औरत के लिए ज़रूरी हैं जो अपने आस-पास बिछाए जाल को पहचानना चाहती है।

BY MOULI SHARMA



पुस्तक:- औरत के हक में
लेखिका :- तसलीमा नसरीन
अनुवादक:- मुनमुन सरकार
प्रकाशक:- वाणी प्रकाशन
प्रकाशित वर्ष:- 2005
मूल्य:- ₹ 200

पितृस्तात्मक समाज में बहुत सारी महिलाओं की आवाजें दब जाती हैं या दबा दिया जाता हैं। नारी - स्वतंत्रता से जुड़े विचार अथवा आंदोलन बहुत नए नहीं हैं पर 21वीं सदी में भी स्त्री पुरुष के बीच में कृत्रिम असमानताएं मौजूद हैं। ऐसे दौर में तसलीमा अपने उपन्यास "औरत के हक में" में सटीक और सही प्रश्न पूछती हैं जो ना सिर्फ धार्मिक कट्टरवादियों को चुभता हैं बल्कि हर उस मानसिकता को टक्कर देता हैं जो स्त्री को आज भी भोग्या के नज़रिए से देखते हैं।

तसलीमा नसरीन अपने इस उपन्यास में अपने बाल्यकाल से अब तक के जीवन में घटी निर्मम घटनाओं को ज़िक्र किया हैं और इनके प्रकाश में नए सवाल भी पूछा हैं। यह एक ऐसी पुस्तक हैं, जिसे प्रत्येक औरत को अवश्य पढ़ना चाहिए जिससे वे सब यह समझ सकें कि उनके आस - पास उन्हें दिग्भ्रमित करने के लिए कितनी जालें बिछाई गई हैं। वे समझ सकें की उन्हें खुद को शिक्षा रूपी ताकत से खुद को सक्षम करना होगा जिससे वे सारे बंधनों को तोड़ सके, सारी बेड़ियों को पिघला सके जो वस्तुतः उन्हें बांधने या जकड़ने का प्रयास करते हैं। तसलीमा के सवाल विज्ञान के तार्किकता पे खड़े उतरते हैं, स्त्रीयों को स्वालंबन के लिए तत्पर करते हैं। वह सत्ता, समाज और धर्म के सारे अंधविश्वास और नियमों पे सवाल खड़ा करती हैं जो प्रत्यक्ष या अप्रत्यक्ष तौर पे महिला को अबला या कलंकित मानते हैं।

'नष्ट' या 'कलंकित' या 'पतित' शब्द पुरुषों के लिए नहीं स्त्रीयों के लिए व्यवहृत होते हैं। जैसे की अंडे खराब हो जाते हैं, दूध बर्बाद हो जाता हैं, नारियल सर जाता हैं वैसे ही औरत 'पतित' हो जाती हैं। हमारे समाज में ऐसी ही दूसरी तमाम चीज़ों की तरह ऐसी किसी स्त्री को भी 'नष्ट', 'बर्बाद' या 'पतित' कहा जाता हैं। इस देश की शिक्षित और रुचिसंपन्न युवतियां इन तमाम बर्बाद या 'पतित' युवतियों से अपने को अलग - थलग रखने के मामले में बड़ी चौकस रहती हैं। अपने को अलग थलग रखना मूर्खता हैं क्योंकि जहां किसी - न - किसी रूप में तमाम औरतें सताई जा रही हैं वहां इस तरह के किसी वर्ग - भेद या श्रेणी - भेद का कोई सवाल ही नहीं उठता । यह भ्रष्ट समाज तो इसी ताक में रहता हैं की जरा - सा मौका मिला नहीं की लड़कियों को ' नष्ट ' या ' बर्बाद ' को संज्ञा दे देता है ं। पुस्तक के कुछ अंश, तसलीमा नसरीन, 2005

— पुस्तक के कुछ अंश, तसलीमा नसरीन, 2005

शिल्पी कुमारी दिल्ली विश्वविद्यालय के कालिंदी कॉलेज में पत्रकारिता का छात्र है। दार्शनिक विचारों के प्रति उनका स्वाभाविक झुकाव और साथ ही एक अंग्रेजी केंद्रित पाठ्यक्रम में हिंदी भाषा के अकादमिक के रूप में उनके अनुभव उनके लेखन, आलोचना और कविता में प्रतिबिंबित होते हैं।

CULTURE

Of Muslims & Vermin

A review of Shaunak Sen's award-winning 2022 documentary 'All That Breathes' — about a Muslim family in Delhi who run an underground hospital for injured kites — and what it says, with its quiet imagery and averted gaze, about CAA politics and the condition of everything that tries to breathe in a city divided.

BY MOULI SHARMA



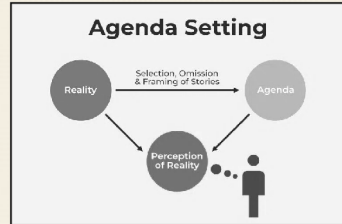
As communal violence & bigotry scorched through the streets of Delhi during the last CAA protests, a quiet, unsuspecting documentary on a bird hospital ended up saying that on the subject of Muslims & vermin which most immigration laws are afraid to.

As the 2024 Lok Sabha elections loom closer, the BJP-led government has felt neither guilt nor shame in bringing back the CAA into conversation & legislation. So it is only fair, that we also bring back to those who have (& introduce to those who haven't) experienced the masterpiece that was All That Breathes .



A snail moves on a windowsill as a fire burns on the street outside. All That Breathes, 2022, Shaunak Sen.

Title: All That Breathes
Genre: Documentary
Duration: 97 Minutes
Release: 2022
Directed By: Shaunak Sen
Synopsis: As Delhi’s air worsens for non-vegetarian birds and religions alike, three men attempt to save what they can among all that breathes.



A close-up of a kite, All That Breathes, 2022, Shaunak Sen.

CONTINUED ON PAGE 3 →

the matter. The same stands disposed of accordingly.” (Surjit Singh Yadav vs Union Of India And Ors on 3 November 2023)

attack could manage; it seeks to weaken our judicial machinery, laughable case after laughable case. And the tragedy, is the courts seem to have no intention to penalise them.

Of Muslims & Vermin
CONTINUED FROM PAGE 2

"We came to animals and science through our late mom's fables about ghosts and holy spirits. The 'cat-saint', 'vulture shrine', spirits that appeared as snakes and insects. One shouldn't differentiate between all that breathes."
All That Breathes, 2022

— ALL THAT BREATHES, 2022



A small frog stares into the distance, All That Breathes, 2022, Shaunak Sen.

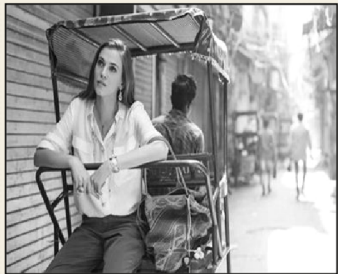
Saud and Nadeem, two brothers running a veterinary hospital for birds of prey out of the basement of their brick laden west Delhi family home along with their friend Salik navigate the fiscal and familial difficulties of 'saving kites' as the family business as more and more birds fall from the sky in Delhi's worsening air, while a threat that has little to do with brotherhood or medicine begs whether they should be saving themselves instead.

Similar in structural principle to Eeb Allay Ooo! (2019, Prateek Vats), All That Breathes alternates from exquisite and beautiful shots of the city and its wildlife to the unpretentious, voyeuristic comedy of a middle class Delhi man's everyday. The transitions and fills are lingering and gorgeous, making the most judicious and clever use of narration possible, collaging painstakingly personal, breathtaking moments of breath itself within the city with insights from two self made veterans of the same. Centipede breaking the surface of a puddle as an aeroplane flies overhead. Rats having a pixar dinner by a burst-gutter Sein. Cows migrating across a storm clogged river. Flies on a car deck. Everything that breathes.

Not a moment is wasted, not a single set half assed. The sound is withheld and haunting, it tells with what it doesn't tell. The backdrop of the streets screams with protests and political agitation as Salik opens a refrigerator filled with meat. News headlines of the progression of violence over the CAA score the outline of themselves overlayed on shots of the streets and people. The whole film walks a circle around this violence; around prejudice and words. Only one section within the entire film even bothers stating violence, explicitly - not in as many words, but in pictures, and those too not of the violence itself, but of it's aftermath. Of the space left behind by it, of the ashes left in its wake. It lasts for less than a minute. It is silent.

"By calling people termites and rats, they've somehow made it about hygiene. Just like the kite's different, people are also treated differently. Violence is always an act of communication." *All That Breathes, 2022*

— ALL THAT BREATHES, 2022



Rats scurry over a trash covered streetside in Delhi, All That Breathes, 2022, Shaunak Sen

"What's a crater?" "A hole where something happened." *Room, 2010, Emma Donaghue*

— ROOM, 2010, EMMA DONAGHUE

This is the worth of technical excellence; no labour of love is invisible. This film falls to me, within the unnervingly small category of perfect; deeply funny, deeply human, and absolutely flawless. It dares you to decide or admit that you've already decided - what is too dirty for you to mourn? Whose corpse are your hands too clean to pray for. What won't you bury. What will you burn.

The Back Page

Sudoku · April 2024

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